

הלכה

Charity Begins At Home

TZEDOKA AND MAASER AT THE CHABAD HOUSE

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In this article we will address halochos regarding tzedoka, as well as the allocation of maaser. As always, consult your rov regarding your personal questions.

TZEDOKA: Tzedoka money is a resource of people who have chosen to take some of their mundane and allocate it towards the sacred. The shliach is often privileged to serve as a trustee for this exalted commitment. This awesome responsibility stimulates numerous halachic questions, of which some of the more common will be discussed here.

MAASER: The mitzvah of tzedoka is to provide the needy with their necessities. Our chachomim advised to allocate a budget for one's tzedoka endeavors; an average person should set aside a tenth of his income (maaser), while the more generous will designate up to a fifth (chomesh). Some poskim allow the use of maaser money for other elective mitzvos, as well.¹

Tzedoka Q&A

Q: We run our Chabad House and all its programs from our home. We make a point to separate and reserve all food and materials

purchased with Chabad's funds specifically for Chabad House functions, though there are times when our family might inadvertently make use of them (e.g. by printing personal documents from Chabad's printer, using paper goods, etc.). How concerned do we have to be that we are misappropriating tzedoka funds? Does this change if we are paid a salary from a head shliach or raise our own salary?

A: Since you are in a position of trustee of tzedoka funds, you have the discretion to spend the funds in your care as you see fit for the interests of the trust. For example, trustees may choose to give workers bonuses at their discretion.² It makes no difference who pays the salary.

There are multiple reasons that one need not worry too much about the oftentimes blurred lines between personal and institutional property. For one, these blurred lines may sometimes be serving the interests of the trust. Additionally, the tension that will be caused by continually having to focus on the distinction between personal and institutional will likely be counterproductive. As such, the trustees may choose to relax on



this issue and allow personal benefits to the shliach and his dependents in lieu of the flow of benefits in the other direction, i.e. from the personal to the institutional. The institution benefits from the blurred lines by making use of the family's personal possessions without cheshbon (an extra this or that for a program, etc.), which can be viewed as fair barter in exchange for the benefits gained by the shliach in printing a personal document from the printer or taking some extra balloons for his kids.

Needless to say, one must ensure that this laid-back policy is not abused. If a shlucha has to think before making a photocopy, "Is this personal or institutional?" it is going to drive her insane! But when she's making a booklet for her family and running off 150 copies, she should reimburse the institution for the significant cost involved.

Q: We have lots of leftover food from our recent shabbaton, all of which was purchased with Chabad funds. Though we froze the bigger leftover dishes for use at future programs, quite a bit still remains. May we take it home and use it for supper for our family?

A: This is another application of blurred lines addressed in the previous answer, where a relaxed attitude is acceptable, provided it is in sensible proportion. You are right that foods that are quite intact and will keep perfectly for a future function should be stored responsibly.

Let's look at a slightly different example:

The Chabad House has a kiddush, and numerous members contribute various foods. As such, they have also volunteered and chipped in. So when there are leftover foods, it would be correct to offer these to them, first. Priority would be given to those perceived as more needy.

Q: We run our Chabad House and many of its programs from our home. Though the shul only takes up one room of the house, we have people stopping by at all hours, which means our entire house must always look very clean and presentable. We also use our kitchen to prepare the kiddush, our dining room to plan programs, etc. Who pays for the cleaning help?

A: The costs of maintenance for areas affected by your shlichus should be borne by the institution; maintaining the presentability of your Chabad House is part of your shlichus. The Rebbe is quoted as having said, "By us, gashmiyus is ruchniyus!"

Home help for maintaining the areas in your home that are exclusively personal should be seen as a personal expense.

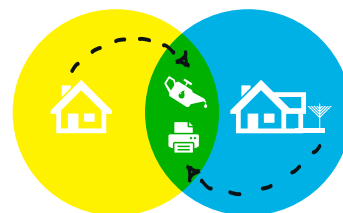
Q: Because we live on shlichus, every family simcha becomes a grand-scale community peula, significantly raising the costs. We would love to pay for it all out of pocket but do not have the means to do so. What do you advise?

A: The extra expenses involved in putting on an event as you've described can be billed to Chabad or paid for with maaser money. In the broader community, it is common practice for the synagogue board to allocate a grant to the rabbi when he makes a personal simcha with the understanding that a significant proportion of the costs are due to his communal duties.

Calculate how much you would have spent on the simcha if you weren't inviting the entire community and determine the difference.

Q: When processing the donations that have come in, what is the hierarchy for distribution of

When it comes to using Chabad's things...



It's okay to be laid back, but don't abuse it!

What do I do with

LEFTOVERS?



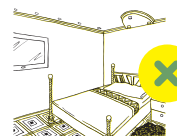
- 1 Freeze what you can for future events.
- 2 Offer what's left to those who contributed it.
- 3 Give it to the needy.

...then don't sweat eating it for supper!

Can Chabad pay for cleaning help at home?



Your living room is part of your shlichus.



Your bedroom is not.



Can Chabad funds...



Can we *Invest* our donations?

No.

The Rebbe was quite clear that one may not invest tzedoka.





How do we know what should receive funds first, second, and so on?

funds that are not designated for specific causes? How do we know what should receive funds first, second, and so on?

A: Distribution of unspecified tzedoka funds must be done with a form of a din Torah

because benefits to Mr. A. are likely at the expense of Mr. B. Indeed, the halocha dictates that distribution of tzedoka funds should be decided upon by a body of three people.³

When funds are donated for a specific purpose, the above procedure is not needed. But in the scenario described above, where Chabad and the shliach are seen as the address for supporting a whole range of communal needs, one should have a budgeting process in place where the trustees (discussed below) will decide what proportion of income should be spent on which need. They could include a petty cash budget, with an agreed policy as to the range of expenses this should be used for.

Who should be the trustees? Ideally, the shliach will have a few baalei batim with whom he will confer as to how to allocate the income of the Chabad institution. These may be local people, or, especially in the case of a very new shliach, his initial funders who helped him launch his Chabad House. This group will act as the executive body to decide on a responsible spending strategy.

Q: We have a lot of travel needs that are a direct result of our location on shlichus. The nearest mikvah is a two-hour plane ride away, adding significant expense to our monthly bills. Additionally, we cannot afford the costly airfare involved in traveling to the kinus, but we know what a benefit it is to our shlichus when we do attend. May Chabad funds be used for these expenses? What about to bring our high school daughter home for yom tov, on the premise that she will conduct children's

programs and assist with other preparations, though we would not necessarily have paid for an outsider to fly in to fill those needs?

A: Yes. Personal costs incurred directly because one's shlichus is far away should be considered work-related expenses and should be borne by the institution. Similarly, participating in a kinus is very valuable for your shlichus and should be seen as a work-related expense. You might feel like we're stretching it, but children needing to fly away from home for their chinuch is also undoubtedly a work-related expense. As such, Chabad funds may be used to fly your daughter home - even if she doesn't help run your yom tov programs!

Q: Can Chabad funds cover the fees for our children to attend sleep-away camp, an absolute necessity for many yaldei hashluchim due to their circumstances?

A: In principle, this is acceptable. For the sake of propriety, however, such an expense should be agreed upon with the trustees.⁴

Q: If I have confirmed with a knowledgeable accountant that it would be above board in my specific circumstances, would it be permissible, as a form of employee benefits, to arrange for Chabad's funds to pay for some of my personal expenses to replace a portion of my salary so that I pay less in taxes as a result?

A: Keep in mind that benefits in kind rather than in cash are also subject to maaser. So, let's say your heating bill is estimated at \$500 and is paid for by the

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institution. You should consider this as a cash income of \$500. However, as stated previously, you need not be excessively anxious about blurring the lines.

Q: We are blessed to have adequate funding for our current activities and some capital to put away for a later stage. May we invest these funds in a business venture of one of our close supporters?

A: No. The Rebbe was quite clear that one may not invest tzedoka funds in stocks or shares, nor in another form of business venture. Conversely, keeping the money in a savings account in a bank is quite acceptable.⁵

Q: Is there anything I have to know about accepting and/or publicizing donations from goyim?

A: One may accept and use donations of a goy to build a shul.⁶ Furthermore, one may solicit grants from non-Jewish sources for the benefit of Jewish needy. True, it is frowned upon to accept charity from a goy who worships idols unless one is literally desperate for food. However, responsa *Zera Emes*⁷ posits that this does not apply to Christians

because their worship is defined as shituf (partnering Hashem with another deity), which is permissible for a ben Noach.⁸

Q: One of our regulars frequently offers us substantial cash donations. We've never discussed the matter with the donor, but given the unusual nature of the donations, their source seems questionable. May we accept such donations?

A: While the following is the halachic position, sound legal advice should be sought to verify its propriety in civil law. This may vary from one country to another, so is imperative to obtain clarity of the civil position for the given location.

Simply halachically speaking, when it is known that the very cash is stolen, one may not accept it as a donation. If there is a margin of doubt and it is possible that this very cash was not stolen (e.g. the donor is known to have a legitimate source of income, too), the initial recipient of said funds may transfer the money to the poor⁹ but may *not* use the cash for himself, lest it is indeed stolen money.

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Maaser Q&A

Q: We are paid a very basic salary from our head shluchim. Can we use the maaser to pay for Chabad peulos?

A: Yes.

Q: May we use maaser to pay for our children's tuition?

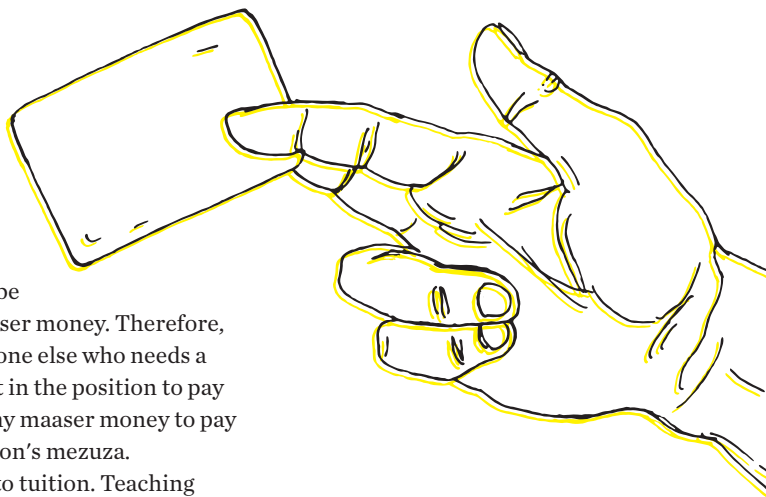
A: No. A person may not use maaser monies to settle his debts. Similarly, maaser money cannot be used to pay for mitzvos that a person is duty-bound to fulfill. Hence, if I need to buy a mezuzah for my door, I cannot pay for it with

maaser money.

However, *elective* mitzvos may be paid for with maaser money. Therefore, if I know of someone else who needs a mezuzah and is not in the position to pay for it, I may use my maaser money to pay for the other person's mezuzah.

This leads us to tuition. Teaching Torah to one's son is an obligation, and the related costs should be borne from one's own funds, not from maaser.

However, in a case of hardship, Reuven can arrange to use his maaser to pay tuition for Shimon's son's tuition.



tion, and Shimon can do the same for Reuven's son.

Alternatively, Reuven can approach the bursar of his son's cheder and say, "I cannot afford to pay tuition but I am ready to give you of my maaser money as a donation. In return, I ask that you give my son a scholarship and accept him into cheder without tuition being paid." Provided that the sums add up, this is a win-win solution.¹⁰

Q: Is there a difference between tuition for sons or daughters or the age of the children in question with regard to whether maaser funds may be used?

A: Preferably, maaser money should not be used for any of the above. In case of hardship, one may use the solutions provided in the previous answer.

To explain: Some poskim allow the use of maaser for Torah tuition of an older son. This does not fit well with the position of the Alter Rebbe, who maintains that the father's duty to teach his son Torah is until the son has a very broad and competent knowledge of Torah.¹¹

The oft-quoted leniency regarding tuition for girls is also not so straightforward. Reb Moshe Feinstein, zichrono li'vrocha, regards tuition for a girl in a Jewish school as a duty and therefore not payable from maaser funds. His

argument is that nowadays schooling for children is compulsory. If a person's daughter did not attend a kosher Jewish school, she would be obliged to attend an establishment where she would be exposed to quite non-religious values. Hence, her kosher Jewish education is a non-negotiable liability.¹²

Q: We used our savings (\$50,000) to pay for Chabad peulos and now fundraise to keep things going, as well as to literally survive. Do we need to give maaser on money we take as a salary, or can that be considered repaying the personal money we "loaned" out?

A: My advice to you is to draw a salary and set aside maaser accordingly. The repayment of the original loan should be worked out over a longer term. The monies you will draw as repayment are not subject to maaser.

To explain: I see you as filling two distinct roles: founder and worker. As a founder, you identified a community that is in need of Chabad input and, therefore, raised capital to establish this facility. Separately, as a worker, you have offered your services to personally manage this facility. You are entitled to be paid for the time and energy that you invest in running the Chabad services in your area.

In this instance, the initial \$50,000

capital was provided by you. Presumably, this was not a donation but a loan, to be repaid when your institution would become more financially stable.

Were we to follow your suggestion, that the salary you draw is repayment of the loan, this would mean that you are not being paid for your time! You may choose to do so, but I hardly consider that to be a sustainable strategy.

So, instead, I would advise you to consider your salary as a salary, and to aim to settle the initial loan separately. As

such, you would separate maaser from your salary. You may choose to put your maaser back into your local Chabad fund. You could also choose to put the maaser towards paying off the initial loan. (Example: You take \$1,000 as salary for the time and energy you invested in running Chabad's services. The \$100 maaser can be put toward the upcoming Chanuka party. Alternatively, you can keep the \$100 and mark it down as part of Chabad's repayment to you of your \$50,000 loan.)

Q: A baal habos recently gave me \$500 and said, "Use this money to buy your children clothing for yom tov." Am I required to give maaser from this gift?

A: This depends on whether you would have spent \$500 toward your children's clothing without having been given the gift. If somehow you would have come up with the money for it in any case, then the \$500 is a saving in your pocket and is subject to maaser. If, however, you would not have done so, or the baal habos gave you money toward, say, painting a room that you would otherwise have left unpainted, the grant to do so is not subject to maaser.¹³

COMPILED BY MRS. ELKY RAITPORT

This article is focused on halachic queries that are unique to shluchim.

Consult your rov, as well as standard and contemporary halachic literature, regarding broader issues (e.g., whether maaser is obligatory or minhag, how to calculate one's maaser, the encouragement to give a chomesh, when giving maaser pushes the giver into debt or into needing personal support from tzedoka funds, does settling debts take priority over giving maaser, etc.).

1. ראה שו"ע יורה דעה רס"ו, רמ"א שם ס' רמט ס"א ובט"ז שם סק"א. וראה סדר ברכת התענית פ"ב ס"ט, דמוכח דאדח"ז ס"ל בזה כחט"ז.
2. ראה לקוטי שיחות חלק י"ט ע' 155.
3. יו"ד סי' רנו ס"ג.
4. ב'תקשורת' (גליון תשפ"ח) הופיע מענה כ"ק אדמו"ר ז"צ לעסקן יו"ד ברוסיה, שחי' בדוחק, ששאל את הרבי אם מותר להשתמש בכסף שקיבל לפעילות, לחינוך בנו וכו'. הרבי השיב: מותר להוציא מכספי צדקה בשביל הוצאות בנו הקטן.
5. ראה היכל מנחם ח"א ע' 66-65; 'תקשורת' גליון תתקפ"ח ע' 12, וט"ו למקורות.
6. רמ"א יו"ד סי' רנד ס"ב.
7. לנהאדן, אטל"ת תקמ"ב.
8. ראה נתיבים בשדה השליחות חלק ב' עמ' 265-263.
9. משה ב"ק ק"ג א; שו"ע חלק ח"מ הל' גנבה ס"ב.
10. פשיטא להו להפסקים שאין לאדם לפרוע חובותיו מן המעשר (פתחי תשובה יו"ד סי' רמט סק"ב, ודראה מקורו לטענה פאה פ"ה מ"ו, ע"ש ברע"ב). ועל פי זה נקטו ששכר לימוד תורה לבנו, שהוא חובה על האב, אין לו לפרוע מכסף מעשר (שו"ת אגרות משה יו"ד ח"ב סי' קיג, ובס"ס).
11. ראה הלכות תלמוד תורה פ"א הל' ט' צדקה ומשפט פ"ו הל' לה. הדין המובא שם בבניו הגדולים מיידי ברוצאותיהם הבריות, שבבניו הקטנים, הרי פרנסתם מוטלת על אביהם, ואילו בניו הגדולים היו יכולים לעבוד ולהרוויח פרנסתם, וכאשר האב נותן להם על הוצאתם, ראוי לשלם ממועשר. אך לא התיר שם לשלם שכר לימוד הבן הגדול ממועשר.
12. ראה שו"ת אגרות משה יו"ד ח"ב סי' קיג; צדקה ומשפט שם.
13. ראה צדקה ומשפט פ"ה הל' כו, לחלק בין מקבל מתנה חפץ שהיה קונה בלא הכי, שחייב לעשר בדיו משותף, לבין קיבל חפץ שהוא בלא הדין קונה, שאינו חייב במעשר.